

26AVCV00678 26AVCV00678

County: los-angeles

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Case Number: 26AVCV00678 Hearing Date: September 8, 2026 Dept: A14

SUPERIOR COURT OF THE STATE OF CALIFORNIA

COUNTY OF LOS ANGELES – NORTH DISTRICT

OBED HERNANDEZ, an individual,

Claimant,

v.

MOBILITAS INSURANCE COMPANY,

Respondent.

Case Number 26AVCV00678

[TENTATIVE]

RULING ON MOTION

Date of Hearing: September 8, 2026

Dept. A-14

Judge William H. Forman

I. Background

Claimant Obed Hernandez (Claimant) moves to compel arbitration.

On May 7, 2026, Claimant filed a petition to open a file for the purpose of establishing jurisdiction over an uninsured motorist arbitration matter pursuant to California Insurance Code section 11580.2, subdivision (f). Claimant asserts this action is proceeding by way of binding arbitration pursuant to the uninsured motorist provisions of the insurance policy between Claimant and Respondent Mobilias Insurance Company (Respondent). Claimant requested the Court grant the petition and take the matter under its jurisdiction pursuant to California Code of Civil Procedure sections 1281 and 1281.2 and Insurance Code section 11580.2, subdivision (f) for purposes of future law and motion.

On July 9, 2026, Claimant filed the present motion to compel arbitration.

On August 25, 2026, Respondent filed an opposition.

On August 27, 2026, Respondent filed a supplemental opposition and declaration to correct the inadvertent omission of Respondent's exhibits from the initially filed opposition[1].

On August 31, 2026, Claimant filed a reply.

II. Preliminary Procedural Issues

Timeliness of Respondent's Supplemental Opposition – The Court notes that all opposition papers were due on or before August 26, 2026. (Code Civ. Proc., § 1005, subd. (b).) However, the supplemental opposition papers filed on August 27th were only one court day late, included no substantive amendments to the documents themselves and only included exhibits already named and referenced in the initial opposition papers, Claimant does not object to the timeliness, and Claimant filed a timely and substantive reply addressing the merits of the opposition. Thus, the Court will consider the supplemental opposition papers in lieu of the initial opposition filed and all exhibits attached thereto.

III. Legal Standard

Standard for Motion to Compel Arbitration –

Standard for Compelling Arbitration – California law incorporates many of the basic policy objectives contained in the Federal Arbitration Act, including a presumption in favor of arbitrability. (*Engalla v. Permanente Medical Group, Inc.* (1997) 15 Cal.4th 951, 971-72.) Cal. Code Civ. Proc. § 1281.2 permits a party to file a motion to request that the Court order the parties to arbitrate a controversy. Under Cal. Code Civ. Proc. section 1281.2, the Court shall order the petitioner and the respondent to arbitrate the controversy if it determines that an agreement to arbitrate the controversy exists unless certain described circumstances exist.

Doubts as to whether an arbitration clause applies to a particular dispute are to be resolved in favor of sending the parties to arbitration.(*Id.*) The Court should order them to arbitrate unless it is clear that the arbitration clause cannot be interpreted to cover the dispute. (*Id.*)

The party seeking to enforce the arbitration agreement bears the burden of proving the existence of a valid arbitration agreement by the preponderance of the evidence. (*Giuliano v. Inland Empire Personnel, Inc.* (2007) 149 Cal.App.4th 1276, 1284.) The trial court first decides whether an enforceable arbitration agreement exists between the parties and then determine whether the plaintiff's claims are covered by the agreement. (*Omar v. Ralphs Grocery Co.* (2004) 118 Cal.App.4th 955, 961.)

The party opposing the petition to compel arbitration bears the burden of proving by a preponderance of the evidence any fact necessary to its defense. (*Giuliano v. Inland Empire Personnel, Inc.*, *supra*, at 1284.) In these summary proceedings, the trial court sits as a trier of fact, weighing all the affidavits, declarations, and other documentary evidence, as well as oral testimony received at the court's discretion, to reach a final determination. (*Id.*)

Insurance Code section 11580.2 establishes certain rules governing uninsured and underinsured motor vehicle insurance policies. Insurance Code section 11580.2, subdivision (f) requires that "the determination as to whether the insured shall be legally entitled to recover damages ... shall be made by agreement between the insured and the insurer or, in the event of disagreement, by arbitration." The provisions of Insurance Code section 11580.2 are deemed to be a part of every uninsured motorist policy. (*Quintano v. Mercury Casualty Co.* (1995) 11 Cal.4th 1049, 1053; *Harford Fire Insurance Co. v. Macri* (1992) 4 Cal.4th 318, 324; *Travelers Indemnity Co. v. Kowalski* (1965) 233 Cal.App.2d 607, 609.)

IV. Discussion

Application – Claimant moves to compel arbitration pursuant to Code of Civil Procedure section 1281.2 on the grounds that Claimant was involved in a motor vehicle collision while driving in his employment with Lyft, Inc., the at-fault party, Christian A. Cardenas, did not have an automobile insurance policy at the time of the collision, and despite repeated demands from Claimant, Respondent has not agreed to an arbitrator or submitted the dispute to arbitration. (Notice of Motion, Ex. A-C.)

As a preliminary matter, the parties do not dispute that an arbitration agreement exists. Claimant provides a copy of the automobile policy that contains the arbitration agreement (the Agreement). (Ben-Cohen Decl., ¶ 7, Ex. D.) The Agreement provides, in pertinent part:

If we and an "insured" disagree whether the "insured" is legally entitled to recover damages from the owner or driver of an "uninsured motor vehicle" or do not agree as to the amount of damages that are recoverable by that "insured", the disagreement will be settled by arbitration. Such arbitration may be initiated by a written demand for arbitration made by either party. The arbitration shall be conducted by a single neutral arbitrator. However, disputes concerning coverage under this endorsement may not be arbitrated. Each party will bear the expenses of the arbitrator equally.

Unless both parties agree otherwise, arbitration will take place in the county in which the "insured" lives. Local rules of law as to arbitration procedures and evidence will apply. The decision of the arbitrator will be binding.

(Ben-Cohen Decl., Ex. D, California Uninsured Motorists Coverage – , ¶E. 5 "Arbitration" [Motion PDF p. 89].) The factual and procedural background underlying this motion as set forth by Claimant are as follows:

On March 22, 2024, while driving and working for Lyft, Claimant was involved in the subject accident while covered under Respondent's uninsured motorist policy. (Motion, p. 3:9-11.) Respondent entered into an agreement with Claimant's employer, Lyft, Inc., to provide \$1,000,000.00 in uninsured coverage for the subject collision, and the agreement included that arbitration is the correct proceeding to resolve disputes between the parties should one arise. (Motion, p. 1:7-10; Opp., p. 1:26-2:2.) Claimant's counsel made a first demand for arbitration on June 25, 2025, to which Respondent responded in September 2025 by providing a list of arbitrators and representing that it would proceed with litigation, including written discovery, which was subsequently served on Claimant on October 2, 2025. (Motion, p. 1:24-28.) Claimant responded to this

written discovery in December of 2025. (Motion, p. 2:1.) On February 2, 2026, Respondent asserted its position that the matter was not ripe for arbitration, and that the action first had to go through Blue Star, which holds OAI coverage for rideshare drivers such as Claimant. (Motion, p. 2:1-4.) On May 27, 2026, Blue Star closed Claimant's claim and Claimant made a second demand for arbitration. (Motion, p. 3:21-28.) Claimant submitted to a medical examination set by Respondent in June of 2026. (Motion, p. 2:17-19.)

Claimant avers that Respondent's position remains that Claimant was required to exhaust Blue Star's OAI prior to the commencement of arbitration, which Claimant disputes, including appealing Blue Star's May 27, 2026 decision to close Claimant's case, and to consolidate with Blue Star as a prerequisite to arbitration. (Notice of Motion, p. ii:26-iii:1.) The crux of Respondent's position appears to be based on its contention that Claimant's policy with Respondent only covers damages not paid or payable by Blue Star, and that it could not determine the amount payable to Claimant under the policy until a determination was made as to the amount Claimant would receive under Blue Star's OAI and until Blue Star's grievance procedures were exhausted. (See Ben-Cohen Decl., Ex. C.) Claimant asserts that OAI procedures are not a precondition to compelling arbitration, as Blue Star's OAI policy is not worker's compensation and therefore does not stay arbitration proceedings. (Motion, p. 5:11-21.)

In opposition, Respondent asserts it suggested arbitrators to Claimant on September 2, 2025 in response to his first demand for arbitration, and again on April 15, 2026 without response from Claimant. (Opp., p. 2:3-9, Ex. A-B.) On February 3, 2026, Claimant represented that he would not open an OAI claim after Respondent twice requested that he do so. (Seigler Decl., ¶ 6, Ex. E-F.) Respondent also asserts that it contacted Blue Star for further information relating to the closure of the claim, and on July 21, 2026, Blue Star informed Respondent that Claimant's claim had been paid out on June 27, 2026 and provided a copy of the OAI pay out. (Opp., p. 2:18-24, Seigler Decl., ¶ 5, Ex. D, H-I.) Respondent asserts that Claimant made no effort to inform Respondent that the OAI payout had been completed, and had Claimant done so, Respondent would have engaged in further conversation to continue arbitration, avoiding the filing of the present motion. (Opp., p. 2:22-27.) Respondent also reaffirms its position that Blue Star's OAI coverage constitutes workers' compensation, that the policy only covers damages not otherwise available through Blue Star, and that Claimant's petition is premature because he has not completed the claims process regarding Blue Star's OAI, thus warranting a stay in binding arbitration until the OAI claims process is completed. (Opp., p. 3:4-8.)

Claimant reasserts his position and arguments on reply.

a. Claimant is Entitled to Arbitration

Code of Civil Procedure section 1281.2 outlines the exclusive grounds upon which a court may deny a petition to compel arbitration. "On petition of a party to an arbitration agreement alleging the existence of a written agreement to arbitrate a controversy and that a party to the agreement refuses to arbitrate that controversy, the court shall order the petitioner and the respondent to arbitrate the controversy if it determines that an agreement to arbitrate the controversy exists." (Code Civ. Proc., § 1281.2.) A court must order arbitration unless it determines that: "(1) The right to compel arbitration has been waived by the petitioner, or (2) grounds exist for the rescission of the agreement," or "(3) a party to the arbitration agreement is also a party to a pending court action or special proceeding with a third party, arising out of the same transaction" creating a possibility of conflicting rulings. (Code Civ. Proc., § 1281.2.)

Respondent does not point to any provision of the CAA as to why the Agreement to arbitrate should not be enforced here. There is no challenge to the existence or validity of the Agreement. There is no question that the scope of the Agreement – "whether the 'insured' is legally entitled to recover damages from the owner or driver of an 'uninsured motor vehicle' or do not agree as to the amount of damages that are recoverable by that 'insured'" – embraces the controversy to be arbitrated. Respondent does not argue that any of Section 1281.2's exceptions to enforcement of the Agreement apply.

And that really is that. Respondent's main argument why the petition should be denied is Insurance Code Section 11580.2 which provides in pertinent part: "If the insured has or may have rights to benefits, other than nonoccupational disability benefits, under any workers' compensation law, the arbitrator shall not proceed with the arbitration until the insured's physical condition is stationary and ratable." As noted, Respondent argues that because the OAI policy is like workman's compensation, the arbitration cannot go forward.

The argument as to whether OAI is or is not a workman's compensation policy is beside the point. That is because, regardless of whether it is or is not, the cited language in Section 11590.2 does not provide grounds for this Court to deny a petition for arbitration. Rather, it concerns circumstances under which the arbitrator may stay the arbitration.

Respondent's Opposition then magnifies this error by misconstruing what is to be arbitrated. The scope is narrow.

"Insurance Code section 11580.2, subdivision (f), which has been incorporated into every automobile insurance policy by law, 'provides that if the insurer and the insured cannot agree whether the insured is legally entitled to recover damages from an uninsured motorist and the amount of such damages, those issues shall be determined by arbitration.'" (McIsaac v. Foremost Ins. Co. Grand Rapids, Michigan (2021) 64 Cal.App.5th 418, 422-423 [quoting Bouton v. USAA Casualty Ins. Co. (2008) 43 Cal.4th 1190, 1193]; See also Quintano v. Mercury Casualty Co. (1995) 11 Cal.4th 1049, 1053.) Here, the Agreement is drafted in accordance with Insurance Code section 11580.2 and states that if the insurer and insured do not agree as to the amount of damages that are recoverable by the insured as to the amounts owed, the disagreement will be settled by arbitration.

Here, the arbitration agreement does not expand the scope of arbitration beyond what is required under Section 11580.2, subdivision (f). Specifically, the arbitration agreement at issue here does not subject the determination of reduction under the policy or under Section 11580.2, subdivision (h) to arbitration. Therefore, the only matters subject to arbitration are (1) whether Claimant has a legal entitlement to recover damages from the uninsured motorist and (2) if so, what amount Claimant is entitled to recover from the uninsured motorist. "Disputes concerning coverage" under the Policy may not be arbitrated." (Ben-Cohen Decl., Ex. D, California Uninsured Motorists Coverage – , ¶E. 5 "Arbitration".) If there is a dispute between the parties as to what the Policy covers and what Petitioner should be paid under the Policy (and it does not appear that there in fact is such a dispute at this point), then that dispute is for another day and forum.

Finally, and probably most importantly, the Court cannot tell if there is any dispute about anything at this point. Respondent concedes in its Opposition: "Petitioner brought this action forward correctly indicating Respondent requested Petitioner complete the OAI Blue Star. Petitioner completed the OAI process on June 27, 2026 (minus the appeal process where Petitioner can contest the pay from Blue Star to their claim) but never informed Respondent of this. Had Petitioner's counsel communicated with Respondent's counsel about OAI status, this motion would have been avoided as evidenced by Petitioner's motion showing the point of contention to continue arbitration conversation was the OAI process." (Opposition, at 7 (emphasis added).)

Respondent appears to acknowledge that it would have agreed to proceed with arbitration had it known about the OAI status at it is no longer a point of contention. Given this concluding statement from Respondent, the Court cannot tell why Respondent filed any opposition.

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Accordingly, Claimant's request that the dispute be compelled to arbitration is GRANTED.

V. Conclusion

Claimant Obed Hernandez's Motion to Compel Arbitration is GRANTED.

[1] The Court notes no substantive changes between the initial and supplemental oppositions and declarations aside from the attachment of Exhibits referenced in the opposition and declaration which were inadvertently omitted. As such, the Court will consider the supplemental opposition. Any references to Respondent's opposition or declaration in support thereof will be in reference to the supplemental opposition filed on August 27, 2026.